भारतसरकार/Government of India
वित्तमंत्रालय /Ministry of Finance
कार्यालय/**Office of**
मुख्य सीमाशुल्क आयुक्त
THE CHIEF COMMISSIONER OF CUSTOMS
मुंबईअंचल-III **/MUMBAI ZONE III**
छत्रपति शिवाजी महाराज अंतर्राष्ट्रीय हवाई अड्डा,
मुंबई-400099
CSM International Airport, Mumbai-400099

सत्यमेव जयते

भारत सरकार

भारतीय सीमाशुल्क

Minutes of the Customs Clearance Facilitation Committee (CCFC) Meeting held on 11.06.2024

Meeting of the Customs Clearance Facilitation Committee (CCFC) chaired by Smt. Prachi Saroop, Chief Commissioner of Customs, Mumbai Zone-III was held on 11.06.2024 at 1500 hrs. in the Conference Room, Air Cargo Complex, Sahar, Mumbai.

2. Following representatives of the Partner Government Agencies (PGAs) and other stakeholders were present in the meeting:

Sr. No.	Name of the Representative (Shri/Smt./Ms.)	Name of the Organization
1.	Dushyant Mulani	Brihanmumbai Customs Broker Association (BCBA)
2.	Sanjeev Harale	BCBA
3.	Chaitaly Mehta	BCBA
4.	Shailesh Sharma	Air Cargo Agents Association of India
5.	R.S. Pal	Department of Posts
6.	N K Meena	Plant Quarantine
7.	Dr. Vageesh Pandey	Plant Quarantine
8.	Harish Shetty	Mumbai Cargo Service Centre Airport Pvt. Ltd.
9.	Pradeep Sonar	MIAL
10.	Rafiq Shaikh	MIAL
11.	Nandan Kanchan	MIAL
12.	Baqir Agha	MIAL
13.	Amit Kadam	MIAL
14.	Gaurav Sabnis	MIAL
15.	Jayant V. Kulkarni	Textile Committee
16.	Pramod Patil	CDSCO
17.	V. Sooraj	CDSCO
18.	Rakesh Mistry	Godrej & Boyce Mfg. Co. Ltd.
19.	V.P. Salunke	Air India Airport Services Ltd.
20.	Kamlesh C. Sawant	Air India Airport Services Ltd.
21.	Dr Karuna Dhale	FSSAI
22.	Kadam Jankiram	FSSAI

The Customs department was represented by the following officers:

Sr. No.	Name (Shri/Smt/Ms.)	Designation	Commissionerate
1.	Ranjit Kumar	Commissioner	Export
1.	G. Shiril Saroj	Commissioner	Import
2.	Nilank Kumar	Commissioner	General
3.	Harish Dharnia	Commissioner	APSC
4.	Sarika Shah	Addl. Commissioner	CCO
5.	Mahendra K Sharma	Addl. Commissioner	Export
6.	Mohan Singh Dorai	Addl. Commissioner	APSC
7.	Pawan Kumar Khetan	Addl. Commissioner	Import
8.	Satish Kumar	Addl. Commissioner	General
9.	Ashwini Adivarekar	Addl. Commissioner	General
10.	V. I. Singh	Addl. Commissioner	Import
11.	Hemant Kumar	Joint Commissioner	Import
12.	Praveen Kumar	Deputy Commissioner	CCO

13.	Deepak Dhamane	Deputy Commissioner	Import
14.	Sangita V. Joglekar	Asstt. Commissioner	Import
15.	G.L. Meena	Asstt. Commissioner	Import
16.	Jagdish Chandra Barjo	Asstt. Commissioner	Import
17.	Anil P. Mohite	Asstt. Commissioner	Import
18.	Shashikant Y. Mane	Asstt. Commissioner	Import

3. The Additional Commissioner of Customs, CCO, Mumbai Zone-III welcomed the participants.

4. During the course of Power Point Presentation, the agenda points for the CCFC Meeting were discussed.

4.1 Old Agenda Point – 1: Long Time taken to shift the cargo from Courier Mode to Cargo Mode.

In the CCFC meeting held on 23.01.2024, the APSC Commissioner had informed the Chair about the successful conduct of trial run for online-processing of trans-shipment and informed that a Public Notice in this regard will be issued shortly. Public Notice No. 05/2024 dated 06.02.2024 has been issued.

(Point Closed)

Old Agenda Point – 2: Improvement in Infrastructure and Service Levels required at MIAL at ACC.

MIAL representative informed that work of the PEB (Pre Engineered Building) is 90% complete, and it will be handed over to Customs by August, 2024. BCBA submitted that the time taken for delivery has now increased to 6-8 hours due to infrastructure constraints, which was 30 minutes earlier. MIAL submitted that due to multiple factors, volumes of cargo are not at optimum level, as they were five years back. MIAL further submitted that they have undertaken work on import cold storage, installation of temporary shed lights, heavy dock terminal construction, revamping of CHA meeting area along with the development of custom offices and firefighting system. The chair suggested MIAL & BCBA to submit data in respect of total delivery time taken for cargo. The Chair directed Commissioner (G) to have a meeting with MIAL and BCBA along with the Commissioner (I) and Commissioner (X) & their respective ADCs and submit the report by 21.06.2024 i.e. Friday. The Chair suggested BCBA to give agenda points one month in advance for the next CCFC meeting, so that there is enough time for consultation by the stakeholders.

Action: Commissioner (G)/MIAL/BCBA

Old Agenda Point - 3: Wrong Examination Order being given by FAG officers leading to considerable difficulties being faced by trade.

BCBA informed that these issues are coming up with other FAGs which are related to other port of entry, not with Air Cargo Complex, Mumbai Zone-III.

(Point Closed)

Old Agenda Point - 4: Pending Bond and Bank Guarantee under CAROTAR

Commissioner (Import) submitted that 21 cases are pending, out of 136 and informed that the 21 cases will be finalized soon.

(Point Closed)

Old Agenda Point - 5: Hidden Instructions appearing at the time of Faceless Assessment – Instances of FAG Officers giving instructions in the comments column which are hidden and are not visible to the trade are often delaying clearances.

Commissioner (Import) informed that this issue has already been raised in NAC meetings.

(Point Closed)

Old Agenda Point - 6: Real time updation of the Inward Date and time to be captured in EDI System – Updation of Inward Date and time in the portal is not being captured properly. (For eg. 12 :12)

BCBA submitted that Inward date and time in EDI System is not being captured properly and suggested that system should update actual time and date instead of pre-decided time and date. Commissioner (Import) submitted that the matter has already been taken up with DG Systems.

(Point Closed)

Old Agenda Point - 7: Shortage of Customs Staff causing Pendency of EMS Articles on day to day basis. Previously 5 Supdts. were available for Custom Clearance, but presently only 4 are available, no reliever is provided against leave of any one of the Supdts., which leads in delay of clearance of articles received in CED Section.

The Chair requested the Commissioner (APSC) and representative from Postal department to expedite the disposal process.

Action : Commissioner (APSC)

4.2 **New Agenda Point – 1: Unilateral increase in THC (Terminal Handling Charges) and Demurrage charges by MIAL**

BCBA submitted that they have discussed this issue in PTFC as well, and suggested that any rate increase should be ratified by Ministry of Civil Aviation, which was being done till 2021.

Due to non-revision of charges for a long period of time and decrease in volume of cargo in recent years, it has become difficult for MIAL to be a sustainable business.

The Chair suggested MIAL and BCBA to come up with statistics before the next meeting for discussion and directed Commissioner (G) to conduct a meeting next week along with the representatives of MIAL and BCBA. As a collaborative measure, before any increase in THC/DC, it was agreed that MIAL will have user consultation in future.

Action: Commissioner (G)

New Agenda Point – 2: Faceless Issues

(a)Delay in assessment: Irregular working of AEM (Anonymized Escalation Mechanism) and limited role of TSK (Turant Suvidha Kendra) is not able to help the trade, leading to trade facing the delay in assessment on regular basis. Suitable escalation mechanism needs to be created if the BoE are not assessed within 24 hrs.

BCBA submitted that the matter has already been discussed with Member (Customs).

(Point Closed)

(b) Monitoring high number queries and multiple queries to be avoided:- Officers tend to raise 3 queries in bill of entry which is leading to piecemeal approach towards resolution. On certain occasions, It is experienced that after reply, FAG officer often push bill of entry back to PAG where another query is being raised by PAG officers.

As informed by BCBA, this issue does not pertain to Air Cargo Complex, Mumbai Customs Zone-III.

(Point Closed)

I Examination orders: There are considerable difficulties faced by trade and industry due to wrong examination order being given by FAG officers.

This issue has already been discussed at Old Agenda Point No. 3.

(Point Closed)

(d) Recall and Re-assessment of BoE's in case of incorrect assessment: There are many instances wherein during assessment at FAG, the FAG officer denies the benefit of exemption notification or enhancement of assessable value without raising query.

I Speaking order not being issued: On various occasion, due to change in assessment carried out by FAG officers, speaking order is seldom issued. For queries like valuation, classification, denial of examination notification etc. speaking order should be issued on immediate basis.

(f) BoE being kept aside on low priority: Provision to keep aside the BoE should be withdrawn on urgent basis, as it is totally non-transparent against the basic principle of transparency and predictability.

These points do not pertain to INBOM4. However, the Chair requested Commissioner (I) to submit a draft letter with regard to all the issues faced by trade, that pertains to other NACs after receiving a point wise representation of the issues faced by trade, so that it be taken up with higher authorities.

The Chair suggested BCBA to submit All India level data, so that it can be taken up with authorities in other FAGs and higher authorities.

Action: Commr.(I), BCBA

New Agenda Point – 3: Streamlining Query Resolution Process for FAG Bill of Entry

This issue has already been discussed at New Agenda Point No. 2(b).

(Point Closed)

New Agenda Point – 4: Delay in clearance with PGA's

(a) **Delay in grant of NOC from Dy. Drug Controller: It usually takes 10-20 days for getting dual use NOC, as opposed to 3 working days in recent past and Non – functioning of online system of CDSCO wherein 'Time for NOC – 0 days' appears, however NOC is not issued for a number of days, leading to huge detention and demurrage charges along with Manual submission of documents.**

It was submitted by BCBA that they had a meeting with CDSCO in this regard, and the issue has been resolved as the O/o Assistant drug Controller has gone completely online.

(Point Closed)

(b) **Plant Quarantine (PQ): For obtaining NOC from Plant Quarantine, trade faces considerable difficulty, because online process is not working due to the up gradation of their software for a long time.**

Commissioner (Import) informed that PQ system for issuing NOCs is online but the system isn't integrated with ICEGATE, which leads to delay. PQ representative submitted that the integration of PQ system with ICEGATE is currently in progress and it will be done shortly. The Chair requested Commissioner (Import) to write a letter to PQ authorities in this regard.

Action: Commissioner (Import)

(c) **Animal Quarantine (AQ): Members have to visit AQ Koparkhairane office for manual submission of documents and Members get NOC at 7 pm daily**

on the AQCS letterhead without the signature of AQCS officer, which is rejected by Customs, thus leading to members approaching AQCS again, taking time of submission of NOC letter to 3-4 working days. Also, AQCS link is not linked with ICEGATE system and members are not getting NOC through ICEGATE systems.

BCBA submitted that the officers of AQ are not available at Air Cargo Complex and they have to approach AQ Koparkhairane Office to receive NOC, which leads to considerable delay in clearance. Commissioner (Import) submitted that the issue of absence of officers of AQ and WCCB officers at ACC has already been taken up.

(Point Closed)

Meeting ended with a vote-of-thanks to the Chair and all attendees.

This issues with the approval of the Chief Commissioner, Mumbai Customs Zone-III.

18.06.2024

(Praveen Kumar)

Deputy Commissioner

CCO, Mumbai Zone-III

Copy to:

1. The Under Secretary (Cus.IV), CBIC, North Block, New Delhi.
2. All Pr. Commissioner/Commissioner of Customs, Mumbai Zone-III.
3. All the Members of CCFC (Through e-mail).
4. The DC/EDI, ACC (With a request to upload the minutes on the zonal website)